

ASCII MASTER FLOW – PANEL 1/9: The Constitution as a layered operating system

INDIAN CONSTITUTION

- +-- FORM: written, detailed, supreme, partly rigid and partly flexible
- +-- POWER: federal distribution with a strong and coordinating Union
- +-- GOVERNMENT: parliamentary responsibility and bicameral legislation
- +-- LIMIT: judicial review, rule of law and basic-structure control
- +-- PURPOSE: rights, DPSPs, duties, justice, dignity and fraternity
- +-- PARTICIPATION: adult franchise, elections and local self-government
- +-- INTEGRATION: single citizenship, integrated judiciary, All-India Services
- +-- PLURALISM: language, asymmetry, minorities and special arrangements
- +-- CRISIS MODE: Emergency powers under constitutional conditions

A salient feature explains how several provisions work together.

ASCII MASTER FLOW – PANEL 2/9: Written detail and three amendment tracks

WHY DETAILED?

federal distribution + diversity + administrative continuity + rights + institutions

CHANGE ROUTES

+-- SIMPLE MAJORITY OUTSIDE ARTICLE 368

| State reorganisation and specified institutional adjustments

+-- ARTICLE 368 SPECIAL MAJORITY

| total-membership majority + two-thirds present and voting

+-- SPECIAL MAJORITY + HALF OF STATE LEGISLATURES

federal provisions and listed Union-State institutions

OUTER LIMIT

Article 368 power -> amendment permitted

-> destruction of basic structure prohibited

Flexibility enables adaptation; rigidity protects constitutional identity.

ASCII MASTER FLOW – PANEL 3/9: Federal design: divided power, integrated nation

FEDERAL CORE

written supremacy + two levels + divided competence + independent adjudication

CENTRALISING FEATURES

- +-- Union-weighted fields and residuary power
- +-- single citizenship, integrated judiciary and All-India Services
- +-- Emergency conversion of operating balance

COOPERATIVE FEATURES

- +-- Inter-State Council | Finance Commission | GST Council
- +-- grants, shared schemes and administrative coordination

ASYMMETRIC FEATURES

- +-- different arrangements for different States and regions
- +-- language and tribal-area accommodation

VERDICT: federal with strong integrative mechanisms, not unitary with decoration.

ASCII MASTER FLOW – PANEL 4/9: Responsible executive under constitutional checks

PEOPLE → LOK SABHA → COUNCIL OF MINISTERS

- +-- collective responsibility
- +-- confidence requirement
- +-- questions, committees and financial control

FORMAL EXECUTIVE: President

REAL POLITICAL EXECUTIVE: Prime Minister-led Council of Ministers

CHECKS

Legislature makes law <-> Executive initiates and administers

Judiciary reviews legality <-> Legislature may validly amend or reenact

President acts constitutionally <-> limited discretion remains reviewable

NO WATERTIGHT SEPARATION

functional overlap + institutional restraint + constitutional supremacy

ASCII MASTER FLOW – PANEL 5/9: Rights, Directive Principles and Duties: the normative triangle

FUNDAMENTAL RIGHTS

shield liberty, equality and dignity; judicially enforceable

+

DIRECTIVE PRINCIPLES

direct welfare, redistribution and transformation; non-justiciable

+

FUNDAMENTAL DUTIES

state civic expectations; not directly enforceable as rights

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CONSTITUTIONAL MORALITY

power pursues public purposes through lawful and rights-respecting means

MINERVA MILLS (1980)

Harmony between Parts III and IV is part of basic structure.

Rights are not absolute; DPSPs are not irrelevant; Duties do not erase rights.

ASCII MASTER FLOW – PANEL 6/9: Democratic participation and accountability ecosystem

CITIZEN

- +-- adult franchise -> representative government
- +-- Union/State elections -> Election Commission supervision
- +-- local democracy -> Parts IX and IXA

ACCOUNTABILITY CHAIN

- legislatures -> political and financial scrutiny
- CAG -> audit evidence
- Finance Commission -> fiscal distribution
- UPSC / State PSCs -> recruitment safeguards
- courts -> legality and rights review

SUBSTANTIVE DEMOCRACY

vote + local participation + affirmative action + social justice

Independence requires secure tenure, resources, fair appointments and compliance.

ASCII MASTER FLOW – PANEL 7/9: Normal mode, emergency mode and restoration

NORMAL MODE

federal distribution + responsible governments + ordinary rights enforcement

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+-- ART 352: national Emergency

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Union power expands; Articles 358/359 follow exact conditions

+-- ART 356: failure of constitutional machinery in a State

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specified State functions assumed; legislative control applies

+-- ART 360: financial Emergency

financial directions may alter ordinary fiscal autonomy

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CONTROLS

written proclamation + parliamentary approval + duration rules + judicial review

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RESTORATION OF NORMAL CONSTITUTIONAL BALANCE

Emergency is a constitutional mode, not an unreviewable constitutional suspension.

ASCII MASTER FLOW – PANEL 8/9: Feature tensions: strength on one axis, risk on another

FEATURE	CONSTITUTIONAL GAIN	INTERNAL RISK
strong Union	integrity and coordination	central overreach
parliamentary executive	daily accountability	executive dominance
judicial review	rights and limited power	counter-majoritarian concern
length and detail	certainty and inclusion	complexity and legalism
amendment blend	durability plus adaptation	strategic change
Emergency powers	crisis capacity	normalised exception
asymmetry	plural accommodation	unequal-bargain criticism
independent bodies	specialised accountability	appointment dependence

Constitutional morality turns institutional power into restrained trusteeship.

ASCII MASTER FLOW – PANEL 9/9: Exact 10/15-mark architecture: why the Constitution is a balanced synthesis

10 MARKS / 150 WORDS

1. Define feature as an interacting design choice, not an adjective.
2. Select three clusters: power, limitation and social purpose.
3. Attach one provision or institution to each cluster.
4. Show one tension: strong Union, executive dominance or review.
5. Conclude with balance maintained through accountability.

15 MARKS / 250 WORDS

1. Begin with written supremacy and amendment blend.
2. Explain federalism plus centralising, cooperative and asymmetric dimensions.
3. Link parliamentary responsibility to checks and judicial review.
4. Integrate rights, DPSPs, duties, franchise and local democracy.
5. Add independent bodies and Emergency modes.
6. Evaluate two design tensions and constitutional morality.
7. Conclude: synthesis is dynamic; tensions do not disappear.